

HOUSE BILL 382

By Butler

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 17 and Title 49, Chapter 1, relative to law
enforcement-supported education programs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-1-401, is amended by deleting the section and substituting:

49-1-401. This part is known and may be cited as the "Tennessee Drug Abuse Resistance Education and Law Enforcement Against Drugs and Violence Act."

SECTION 2. Tennessee Code Annotated, Section 49-1-402(a), is amended by deleting "drug abuse resistance education (DARE) program" and substituting "drug abuse resistance education (DARE) program or law enforcement against drugs and violence (L.E.A.D.) program".

SECTION 3. Tennessee Code Annotated, Section 49-1-402(b), is amended by deleting "DARE America program or a comparable program" and substituting "DARE America program, L.E.A.D. program, or a comparable program".

SECTION 4. Tennessee Code Annotated, Section 49-1-403, is amended by deleting the section and substituting:

49-1-403.

(a) The department of safety shall adopt standards and qualifications, in accordance with the requirements of the DARE America program and the L.E.A.D. program, of law enforcement officers who apply for training as instructors in the DARE or L.E.A.D. program.

(b) The department shall also provide for the training of law enforcement officers as DARE instructors and L.E.A.D. instructors. The department may

contract with agencies of other states for the training of law enforcement officers as DARE and L.E.A.D. instructors.

SECTION 5. Tennessee Code Annotated, Section 49-1-404, is amended by deleting "DARE" wherever it appears in the section and substituting "DARE or L.E.A.D.".

SECTION 6. Tennessee Code Annotated, Section 49-1-405, is amended by deleting the section and substituting:

49-1-405. This part does not supersede or disallow any similar and comparable programs already in place; provided, that this part does not prevent the similar and comparable programs from participating in the funding of the DARE and L.E.A.D. programs pursuant to this part.

SECTION 7. Tennessee Code Annotated, Section 49-1-406, is amended by deleting "drug abuse resistance program" and substituting "drug abuse resistance program or anti-drug and violence program".

SECTION 8. Tennessee Code Annotated, Section 49-1-407, is amended by deleting "DARE" wherever it appears in the section and substituting "DARE or L.E.A.D."; and by deleting "drug abuse resistance" and substituting "drug abuse resistance or anti-drug and violence".

SECTION 9. Tennessee Code Annotated, Section 39-17-420(f), is amended by deleting "DARE program" and substituting "DARE program or L.E.A.D. program".

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.